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The English Patent as a Reward for Invention: The Importation of an Idea

JEREMY PHILLIPS*

How did the practice arise in England of granting a patent monopoly to a deserving inventor as a reward for his inventive endeavours or for his introduction into the country of a new skill or industry? Writing over eighty years ago, the then Patent Office librarian Wyndham Hulme¹ attributed the invention of the patent as a reward for inventors to one Jacobus Acontius. In the petition of Acontius to Elizabeth I for a monopoly of the use of various machines invented by him, and in the subsequent grant by the monarch, there appears an explicit justification of the patent grant as a reward to inventors. The petition² reads:

Nothing is more honest than that those who by searching have found out things useful to the public should have some fruit of their rights and labours, as meanwhile they abandon all other modes of gain, are at much expense in experiments, and often sustain much loss, as has happened to me. I have discovered most useful things, new kinds of wheel machines, and of furnaces for dyers and brewers, which when known will be used without my consent, except there be a penalty, and I, poor with expenses and labour, shall have no returns. Therefore I beg a prohibition against using any wheel machines, either for grinding or bruising or any furnaces like mine, without my consent.

The grant³ of Acontius' petition, which describes in greater detail the nature of the inventions, adds the comment:

At his suit: it is right that inventors should be rewarded and protected against others making profit out of their discoveries.

That Acontius should have been involved in the establishment of a theoretical basis for the patent grant is not surprising when one considers the breadth of interests pursued in his career.⁴ Born in or near Trent around

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the end of the fifteenth century, Acontius became a lawyer; after 1548 he acted as notary or secretary at one time or another to both secular and religious authorities. He spent nearly seven years at the court of the emperor Charles V, where he was a friend of Francisco Landriano (who gave advice to the emperor on wars and fortifications) and Giovanni Maria Olgiati (one of the emperor's engineers). Relatively little is known of his activities, interests or ideals prior to October 1557 when he renounced the Catholic faith and fled from Italy to Basel; thenceforth he became an active advocate of religious toleration and wrote extensively on that subject.⁵ In November 1559 he came to England and there pursued a variety of occupations; for apart from writing tracts on toleration,⁶ history⁷ and fortification⁸ he petitioned for the monopolies mentioned above,⁹ secured a pension of £60 a year from the Queen,¹⁰ fortified Berwick against the Scots¹¹ and attempted (with some success) the drainage of Plumstead Marshes.¹² The date of his death is not known, but is generally reckoned to be around 1556.

The petition has been tentatively dated December 1559 by the editors of the *Calendar of State Papers, Domestic*; the grant is dated 7 September 1565. The dating of the petition was accepted by historians such as Hyde Price¹³ and Sir William Holdsworth,¹⁴ who also accepted Wyndham Hulme's claim for Acontius as the 'inventor' of the rationale of our modern patent system; but that claim was doubted by Professor Seaborne Davies.¹⁵ His argument against Wyndham Hulme's attribution is substantially this, that even if the dating of the petition is indeed as early as 1559, there exist two good examples of industrial monopolies granted before that date; that Sir William Cecil, who shaped the English patent system during Elizabeth's reign, and who must have been familiar with at least one of the two preceding grants, was more likely to have originated the idea of the patent for inventive reward; that the concept of the monopoly as a reward for inventive ingenuity was in any case an obvious analogy with the pre-existing concepts of the copyright monopoly and the grant of privileges of sole exploitation of mineral rights and trade routes; and finally that there exists at least one other petition originating prior to December 1559 and which indicates that a grant was sought as a reward for invention. This case against Acontius was considered by the American historian Lynn White Jr.¹⁶ who dismissed it as weak but did not seek to refute it. In this article the points already raised by Seaborne Davies will be considered more fully, and the role of Acontius as a promulgator of the patent reward will be examined in the light of some fresh evidence.

Let us take each of Professor Davies' points in turn, and seek to establish their strength.

Were there earlier monopoly grants for industrial processes, and what was their significance?

The Patent Rolls contain two industrial patent monopolies which, Davies points out, antedate Acontius' petition; they are the grants to Henry Smyth in 1552¹⁷ and Burchart Cranyce in 1554.¹⁸ In neither case is the petition extant, and the wording of each grant gives no indication that either man invented the process which was the subject-matter of his grant, or that the grant was sought by way of the Crown's reward or approval of a form of activity which was to be encouraged. That being the case, it is difficult to see how either patent grant undermines the claims made for Acontius.

What was the role of Sir William Cecil in establishing patents for inventions before December 1559?

Professor Davies does not in fact cite any positive evidence to link the name of Cecil with the concept of the patent reward; his argument rests upon probabilities, Cecil himself having been instrumental in shaping the patent system later in Elizabeth's reign. He also points out that Cecil would almost certainly have been familiar with the grant to Henry Smyth mentioned above.¹⁰ But if Smyth's grant is not, as has been submitted, relevant to the issue of the function of the patent system, then Cecil's knowledge of it is of no consequence.

Curiously enough it was Cecil who was partly responsible for Acontius' arrival in England. A letter to the politician from Sir Nicholas Throckmorton²⁰ describes Acontius' abilities and politico-religious affections, states that the inventor is about to leave Paris for England, and suggests to Cecil that he is "otherwise very necessary to be entertained." Sir Nicholas, at that time ambassador to France, was seeking at Cecil's behest the services of Italian engineers in the improvement of the fortifications at Berwick, and it was Acontius he sought when the departure to England of the preferred engineer Portinari was delayed.

Were patents for inventions derived from an obvious analogy with copyright monopolies and patents for mining or trading concessions?

There is no evidence that this analogy was in fact drawn prior to the petition of Acontius. It must in any case be doubted that an analogy could be drawn with the English practice of awarding monopolies in the printing of books for two reasons: (i) prior to 1709 the grant of a monopoly on the printing of a work was seen as a measure of censorship or control over the nature of works which it was hoped would be printed;²¹ and (ii) the copyright grant was made to the intended publisher of the work, not to its author,²² so the practice was not analogous.

With respect to analogies with mining or trading concessions, Professor

Davies' suggestion provides an interesting and reasonable hypothesis. But so far as such an analogy may have been made, it would have been very basic in its form. The analogy would have run as follows: "Acts A, B, C . . . n are capable of being the subject of a monopoly grant; the act of exploiting an invention is analogous to acts A, B, C . . . n and is therefore also capable of being the subject of a monopoly grant." Such an analogy does not seek to embrace the reasoning behind the granting of a monopoly on the exploitation of an invention, while it is precisely this justification, contained in Acontius' petition and affirmed by the grant to him, which makes Acontius so notable a figure in the history of the transmission of legal concepts. He did not seek protection of his inventions because similar protection was given to trading or mineral exploitation; he sought it on a point of moral principle.

Does any other petition, prior to December 1559, indicate that a monopoly is being requested because it is a just reward for invention?

A petition of George Cobham and Tomazo Chanata in 1558²³ states that the invention which is its subject was discovered by "diligent travail",²⁴ which conveys the implication that it is the diligent labours of the petitioners which merited the grant of the monopoly. But the petition goes no further than this. The grant (to George Cobham alone) states that it is made "to encourage others to discover like good engines and devices";²⁵ but in this grant there is no evidence that Acontius' ideas had been anticipated, for it is dated (26 May 1562) well after the petition of Acontius in December 1559. This brings us to the question of the correct dating of Acontius' petition.

Is the dating of Acontius' petition correct?

The argument in favour of a later dating is that the December 1559 dating suggests that there existed an inordinate delay of nearly six years between patent and grant. This delay is certainly difficult to explain or justify, but to argue that, on the basis of probabilities, the period between petition and grant must have been shorter is no less difficult. For example, from 27 February 1560²⁶ Acontius was the recipient of a royal grant of £60 a year (in respect of which no petition for financial support has been recorded). It is submitted that Acontius' petition for protection of his inventions is likely to have been submitted at some time before this financial aid was granted; for one who was a recipient of £60 a year from the Queen would be less likely to write to her and describe himself as "poor with expenses and labour" than would one who was not such a recipient. Another possible explanation of events is that since Acontius was relatively old when he applied for his patents (he would not be younger than 59 nor older than 67)²⁷, the Queen and her advisors considered a monopoly grant for a term of years an inappropriate reward for his endeavours; but this explanation is difficult to

sustain if one considers that when the patent grant was finally forthcoming, in September 1565, the recipient of its twenty-year monopoly would have been between 65 and 73 years of age.

Accordingly, it is submitted, there is little evidence in favour of the view that anyone other than Jacobus Acontius introduced the concept of the patent-reward for inventors to the Elizabethan government. But where did Acontius learn of patent rewards himself?

Acontius was a lawyer himself by training and profession,²⁸ but it is improbable that he acquired the notion of legal rewards for inventors through either his education or his legal practice. We know that he was influenced by the writings of Baldus and Bartolus, but in these jurists it is hard to find any source to which the patent for invention may be traced. The Venetian republic, which dominated the Trentino during the time of Acontius, had a flourishing patent system²⁹ of its own (discussed later), but no extant published compilations of Venetian law in Acontius' time make any reference to it.³⁰ In books on the subject of invention too there is – with the important exception, discussed below, of Girolamo Cardano's *De Subtilitate* – no reference to or discussion of the legal reward of the inventor by means of the patent monopoly.³¹ So, *prima facie*, there was little in the way of printed material through which Acontius could have acquired his concept.

Lynn White³² has suggested that Acontius might have gained his idea from Cardano's *De Subtilitate* or from first-hand acquaintance with the invention described in it. In this work first published in 1550, there is an account³³ of the grant in 1547 of a patent by the emperor Charles V to an unnamed inventor who devised a cranked flour-sifting machine and who marketed it so successfully that in a short time he had built himself a house out of the proceeds. Acontius may have read Cardano's popular work (although there is no evidence to suggest that the two eminent Italians had ever heard of each other, let alone that the one had read the other's works), or he may have seen it himself during the time he spent at the court of Charles V between 1549 and 1556.³⁴ There is, however, fresh evidence which points to the possibility of Acontius having acquired his idea of the patent reward first-hand, as a patentee in Venice as early as 1545.

The practice of granting patents in Venice was broadly similar to that of England prior to 1474. Before that date monopoly grants might be made for mineral concessions, for trading privileges or for the exploitation of inventions, there being no significant legal difference between the three varieties of monopoly. But on 19 March 1474 the Venetian Senate passed by a large majority the following decree:³⁵

There are in this city and in its neighbourhood, attracted by its excellence and greatness, many men of diverse origins, having most subtle minds and able to devise and discover various ingenious

artifices. And, if it should be provided that no-one else might make or take to himself to increase his own honour the works and devices discovered by such men, those same men would exercise their ingenuity, and would discover and make things which would be of no little utility and advantage to our state.

Therefore it is enacted by the authority of this body that whoever makes in this city any new and ingenious device, not previously made within our jurisdiction, is bound to register it at the office of the *Provveditori di Comun* as soon as it has been perfected, so that it will be possible to use and apply it. It will be prohibited to anyone else within any of our territories to make any other device in the form or likeness of that one without the author's consent or licence, for the term of ten years. But if anyone should act thus, the aforesaid author and inventor would be free to cite him before every office of this city, by which office the aforesaid infringer would be compelled to pay one hundred ducats and his artifice would be immediately destroyed. But our Government will be free, at its total pleasure, to take for its own use and needs any of the said devices or instruments, on this condition, that others than the authors may not employ them.

The precise effect of this decree is difficult to quantify, since its text is poorly promulgated and rarely followed to the letter;³⁶ but by the 1540s the number of patent grants for inventions averaged close on four a year.³⁷

One of these grants is of particular interest; made in 1545,³⁸ it gave a twenty-five year monopoly over devices for driving mills and draining marshes. There were three grantees, named in the grant as "Jacomo Antonio da Trento, et Jacomo da Trento, et Jacomo dal Ponte di Bassan depentori". The third grantee is easily identifiable as the artist Jacomo (or Jacopo) Bassano.³⁹ His interest in mills and in marsh-drainage would appear to be something of an aberration in an otherwise conventional career as a painter, and there is no evidence apart from this grant which links his name with any inventive projects.⁴⁰ The other two grantees have not been successfully identified, though Guiseppe Gerola⁴¹ has suggested that they may have been Giacomo da Mori and Giacomo Antonio da Mori, who collaborated with Bassano in the decoration of the Castello del Buonconsiglio. Apart from the coincidence of names, and the fact that both are "depentori" (painters), there is no evidence that these obscure artists are synonymous with Bassano's fellow-grantees. The petition for the patent grant, though recorded as having been deposited in the *filza*, a useful bundle of records and correspondence which accompanies many of the archival registers, is missing, and there has not yet been found any evidence indicating that the patented inventions were ever used.⁴² This does not make the identification of the two Giacomos any easier, but it facilitates the submis-

sion that the "Jacomo da Trento" recorded in the patent grant is in fact Acontius.

What case may be made for the identification of Acontius with this man? Both came from Trent, share a common forename, were alive at the same time, applied for patents and manifested technical interest in milling machines⁴³ and in the draining of marshes.⁴⁴ The only evidence in conflict with this is the fact that the three grantees are labelled "depentori", while Acontius was not a painter. What can be said of this? It is certainly strange that a patent grant of this nature should be made to three painters; two painters and an engineer would have been a more reasonable trio. Perhaps the answer lies in the use of the word "*depentor*". It comes from the Latin root *depingere*, which means in its literal sense "to depict in pictorial fashion, to paint", but which in its metaphorical sense means also "to conceive". In these senses a *depentor* would be a designer or inventor; the person who has the idea or the person who puts it into a discernible shape; Zuan da Brexa is described as a *depentor* when he receives in 1514 a copyright grant in respect of a wood-cut design.⁴⁵ There is also a possibility that the three grantees are described as *depentori* because they supplied pictorial evidence of their inventions in the form of useful diagrams. The text of the grant refers to the granting of a monopoly for the use of their invention "come nella loro supplicatione" ("as in their supplication"), and this is the earliest grant in respect of which a reference is made on the face of the *Senato* register to the fact that the petition or *supplicatione* has been placed in the *filza*. Could this change of practice, this filing of the petition, be a consequence of the petition's being accompanied by a plan or diagram?

If this argument is correct, and "Jacomo da Trento" can be identified with Acontius, it follows that it would not have been through reading Cardano's *De Subtilitate* nor through personal familiarity with the nature of the invention or grant therein, but through his own experiences as an inventor within the extended Venetian republic that Acontius acquired his notions concerning the rewarding of inventors by means of patents.

NOTES

1. 'The History of the Patent System under the Prerogative and at Common Law' (1896) 12 L.Q.R. 141 at 148, 151.
2. *Calendar of State Papers, Domestic*, 1601-1603 (Addenda 1547-1565), 495.
3. *Calendar of Patent Rolls*, 7 Eliz. I, 331.
4. Useful accounts of Acontius' career may be found in the *Dictionary of National Biography*, vol. I, 63; *Enciclopedia Italiana di Scienze, Lettere ed Arti*, vol. I, 336; W. Jordan, *The Development of Religious Toleration in England* (1932), vol. I, 303 et seq.; H. Dick, 'Giacomo Concio: A Renaissance Exile', (1941) 26 *Modern Language Forum*, 13 and in L. White Jr., 'Jacopo Aconcio as Engineer', (1967) 72 *American Historical Review*, 425.
5. Examination of these writings may throw some light on Acontius' attitude towards the function of law. For example, in the opening of Book I of his *Satanae Stratagemata* he claims that "man is by his very nature beyond measure arrogant, high-minded, intemperate, greedy, insatiable, covetous, a supplanter, deceitful, quarrelsome, envious, revengeful, murderous, blind, headlong, harsh, wicked and born with a disposition to every evil deed" (translation by W. Curtis, edited by C. O'Malley, San Francisco 1940, at 7). Is this opinion reflected in his desire for patent protection for inventors?
6. An account of Acontius' writings on tolerance may be found in Jordan, *op. cit.*
7. *Calendar of State Papers, Domestic*, 1547-1580, MS dated August (?) 1564; see Dick, *op. cit.*, at 16-17.
8. *Ars Muniendorum Oppidorum*, published posthumously at Geneva in 1585. No known copy of this work is in existence.
9. See note 2, *supra*.
10. *Calendar of Patent Rolls*, 2 Eliz. I, 254.
11. For an account of this enterprise see White, *op. cit.*
12. *Calendar of State Papers, Domestic*, 1601-1603 (Addenda 1547-1565), 538; *Calendar of Patent Rolls*, 5 Eliz. I, 526.
13. *The Early Patents of Monopoly* (1906), 7.
14. *A History of English Law* (1924), vol. IV, 345.
15. 'Acontius, Champion of Toleration, and the Patent System' (1936) 7 *Economic History Review*, 63.
16. White, *op. cit.*, at 426-7
17. *Calendar of Patent Rolls*, 6 Edw. VI, 159.
18. *Calendar of Patent Rolls*, 1 Mary, 325.
19. Davies, *op. cit.*, at 65-6.
20. *Calendar of State Papers, Foreign*, 1558-1559, p. 500.
21. On the early history of copyright in England see Holdsworth, *op. cit.*, vol. VI, pp. 361-79.
22. But the reward of copyright for the meritorious author was not unknown in Venice, where the Roman humanist Marc'Antonio Sabellico was granted a monopoly of his history of Venice as long ago as 1486 (Archivio di Stato, Venezia, *Collegio Notatorio*, Reg. 13, f. 115v.).
23. *Calendar of State Papers, Domestic*, 1547-1580, p. 119.
24. White, *op. cit.*, 433n, following Wyndham Hulme, *op. cit.*, at 145, reads "travel", from which he concludes that the invention was found abroad and imported. In the sixteenth century the word 'inventor' could equally well describe the person who finds and imports what was known elsewhere or the person who discovers what was not in existence before.
25. *Calendar of Patent Rolls*, 4 Eliz. I, 407.
26. See note 10, *supra*.
27. Most authorities have accepted a birthdate for Acontius at around the turn of the century; but Dick, *op. cit.*, following the *Enciclopedia Italiana*, accepts the far later date of 1520.
28. On Acontius' early life and training see note 4 *supra*.
29. For an account of the Venetian patent system see G. Mandich, 'Le Privative Industriali Veneziane: 1450-1550', (1936) 34 *Rivista del Diritto Commerciale*, 511-47.

30. See, e.g. (untitled) *Statuti de Venesia* (copy numbered C88, Biblioteca Marciana), Venice 1477; *Statuta Venetorum*, Venice 1492; *Index omnium materiarum, que in Venetiarum Statutis continentur*, Venice 1548.
31. See, e.g. Polydore Vergil, *De Inventoribus Rerum*, Venice 1499; Gulielmo Pastregio, *De Originibus Rerum*, Venice 1547; Johann Textor, *Officina* . . . Basel 1552.
32. *Op. cit.*, at 433.
33. *Hieronimi Cardani Mediolanensis Medici, de Subtilitate libri XXI* (Nuremberg 1550), Book I, 61.
34. White, *op. cit.*, at 433.
35. Archivio di Stato, Venezia: *Senato Terra*, Reg. 7, c. 32. I have adopted (with minor changes) the translation of M. Frumkin, 'Early History of Patents for Invention', (1947-9) 26 *Transactions of the Newcomen Society*, 47 at 49.
36. On the lack of conformity between word and deed little comment has yet been made. Suffice it to say by way of example that, of the 101 patents listed by Mandich, *op. cit.*, only six were for the stipulated duration of 10 years.
37. Calculation based upon the figures in Mandich, *op. cit.* Inspection of the Senate registers indicates that a grant would often apparently cover more than one invention.
38. Archivio di Stato, Venezia: *Senato Terra*, Reg. 33, c. 176. The date given is 15 January 1544, but by the Venetian calendar the year 1545 would have run from March to the following February.
39. See E. Gerola, 'Un'invenzione di Jacomo da Ponte e di due pittori trentini', (1907) *Trentum*, Fasc. IV, 167; W. Arslan, *I Bassano* (1931), 46.
40. But in 1576 Bassano did paint a picture of a river in flood: the *Madonna col Bambino*, *S. Crescenzo e Sant'Antonio* in the Chiesa degli Angeli, Feltre.
41. 'Nuovi appunti sui Verla (A proposito degli artisti vicentini del Rinascimento nel Trentino)', (1918) *Arte e Storia*, ser. IV, 29.
42. The names of the three patentees have not been found in any of the records of the *Savi ed Esecutori alle Acqua* of that period.
43. See text of Acontius' petition of 1559 and note 2, *supra*.
44. See Acontius' petition of 1563, note 12, *supra*.
45. Recorded in R. Fulin, 'Documenti per servire alla storia della tipografia veneziana', (1882) 23 *Archivio Veneto*, 84, at 179.

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